

Satish Chandra v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 21 August 2024 · 2024:AHC:133907-DB · Writ - C No. 25101 of 2024 · **Writ disposed; Respondent No. 2 to decide the representation under Clause 6.5 within six weeks.**

HEADNOTE

A consumer's representation dated 27.03.2024 remaining undecided, the Division Bench disposed of the writ by directing Respondent No. 2 to pass a reasoned order on that representation in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005, within six weeks after granting an opportunity of hearing. Merits of the grievance were not examined.

FACTUAL SUMMARY

Satish Chandra filed a writ petition under Article 226 of the Constitution before the Allahabad High Court, aggrieved by the inaction of the respondents in deciding his representation dated 27 March 2024. Counsel submitted that the representation raising his grievances had been filed before Respondent No. 2 and remained undecided. The State was represented by the Standing Counsel. The Court did not record the nature of the grievances. The Division Bench disposed of Writ-C No. 25101 of 2024 on 21 August 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

reasoned decision on pending representation

HOLDING

Where a representation filed before the designated authority remains undecided, the High Court may dispose of the writ by directing that authority to pass a reasoned order on the representation in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005, within a stipulated period after granting the consumer an opportunity of hearing, without examining the merits of the grievance. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE REPRESENTATION DATED 27.03.2024

The Court directed a reasoned decision under Clause 6.5 and did not examine the petitioner's grievances. ¶ 4-6